

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on November 5, 2023, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On November 5, 2023, a complaint was submitted to this Agency by Mr. A.A.A. (hereinafter, the complainant) against SD IBERIAN PORTFOLIOS, S.A. (hereinafter, the respondent) for not having adequately addressed his rights of access and deletion.

The complainant states that he became aware of the inclusion of his personal data in common credit information systems by the respondent entity, without having been duly notified.

He states that in April, when attempting to apply for a personal loan, several entities denied his request. One of them mentioned that the reason could be his inclusion in a solvency file. Without having any knowledge of this, he registered with EQUIFAX to verify if he was included in such files and, upon checking, he found that he indeed was, due to the company SERVDEBT.

Upon contacting SERVDEBT to understand the reason for the debt, they sent him a debt purchase document between Santander and SD Iberian Portfolio, indicating that he should contact Banco Santander. Despite having an open account with Santander, the bank verbally informed him that they had no record of the credit card debt in their systems and only had information regarding the purchase of the debt. He claims that they requested his data to send him more information, but he has not received anything to date.

He points out that, due to the lack of information from Santander, he formally contacted SD Iberian Portfolio, the responsible company claiming the debt, sending them a burofax in which he requested the contract details of the credit card and the following documentation to verify that the debt was valid, due, and enforceable, as he did not acknowledge having contracted any card with Santander:

- "1. A document confirming the existence of the debt.
2. The contract in which I appear as the holder of the debt.
3. Documents demonstrating the defaults on which the debt is based.
4. A document certifying the amount owed.
5. Evidence of communications with me as the holder of the debt in an attempt to collect before my inclusion in the delinquent file.

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SECOND: In the event that they cannot provide all the requested documents to prove the certainty, due date, and enforceability of the debt, in accordance with Article 20, paragraph 1, B of Organic Law 3/2018, I urge you to proceed with the immediate cancellation of my data in the ASNEF-Equifax solvency file."

Servdebt España SLU responded to this burofax indicating that the complainant "(...) is the holder of a current account and credit card contract signed with the entity SANTANDER, S.A., which, as you already know, according to the notification letter of the assignment of credits, all rights and actions of the said credit, including the principal, interest, and compensations, as well as any other monetary obligations arising from it, were assigned to SD Iberian Portfolios, S.A.

It also states that Servdebt España, SLU, (...) has been designated by the aforementioned creditor for the management of its credits.

(...) The debt claimed from Mr. (...) is monetary, certain, due, and enforceable, and as of today, it remains unpaid. Furthermore, this debt does not exceed the age of 5 years, so our client can continue to claim it. Additionally, the payment of the debt and the inclusion in the delinquency files has been duly communicated to Mr. A.A.A. by letter sent to his address.

(...) You can request a copy of all documentation regarding this debt from the entity SANTANDER, S.A. where you contracted the services.”

The complainant asserts that the entity that included him in the file did not provide any document that proved the certainty of the debt, nor a credit card contract, nor amounts paid or pending, nor dates of default. This led him to doubt the veracity of the debt.

He also indicates that for inclusion in these files, five years must not have elapsed since the date the debt was due or since the obligation's maturity. The entity also could not demonstrate when the default occurred, despite being requested for this information.

He concludes that he is not questioning the veracity of the debt, but rather that the company responsible for his inclusion in the solvency files has not been able to verify two of the six necessary conditions for such inclusion: the prior existence of a certain, due, and enforceable debt, and that five years have not elapsed since the payment date or maturity. He claims that when requesting this information, the respondent did not provide it, leading him to assume that they do not have it and that his inclusion in the files does not comply with the law. For this reason, he submits this complaint, as he doubts that the company complies with the regulations of the LOPD.

Along with the complaint, various documents have been submitted:

- Email thread between the complainant and the data processor Servdebt.
- Burofax dated 10/09/2023 addressed to “Servdebt/SD Iberian Portfolio”

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Response to the burofax by Servdebt dated October 11, 2023.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the aforementioned claim was forwarded to SERVDEBT ESPAÑA SL, so that it could proceed with its analysis and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations. SERVDEBT ESPAÑA SL responds that it is mandated by SD IBERIAN PORTFOLIOS, S.A. to manage the debts, in accordance with the power of attorney issued by this entity and that, for this reason, Servdebt is not the creditor of the mentioned debts. According to the service provision contract entered into, Servdebt assumes, with respect to data protection, the position of data processor.

“(…) On February 25, 2021, BANCO SANTANDER, S.A. (the “Bank”) transferred to SD IBERIAN PORTFOLIOS, S.A. (the “Assignee”), all rights and actions derived from the Financing - including capital, interest, compensation, and any other monetary obligations arising therefrom - (the “Credit”) by virtue of a sales contract (...)

Banco Santander S.A. has transmitted to the Assignee those personal data related to the Credit that were provided by the claimant and that are necessary for its management and enforceability.

SD IBERIAN PORTFOLIOS, S.A., as the new data controller of your personal data following the assignment of the Credit, processes the personal data for the purpose of managing and controlling the Credit, including debt collection, as well as complying with legal obligations.

Furthermore, for the fulfillment of the service provision contract, the Assignee has provided Servdebt España S.L.U. with its personal data related to the Credit, necessary for its management and enforceability (among others, name, surname, NIF/CIF, DNI/NIE, address, date and number of contract, amount of collection rights, bank account number and holder, inclusion or not in solvency and credit files, judicial proceedings if applicable, and others relevant to the pursued purpose)

Servdebt is not the data controller, but rather the data processor; (...)

Servdebt indicated that the claimant submitted a request for deletion, and that after analyzing the available information, “(...) it has been confirmed that the debt existed and, for this reason, the data will remain in the ASNEF solvency file (it is worth mentioning that the complainant has not attached any documentation justifying their cancellation request).”

The entity states that the respondent submitted another request for opposition, attaching the complaint filed with the AEPD.

“✓ According to the ASNEF procedure, if there is a complaint before the AEPD, ASNEF temporarily cancels the data as a precautionary measure.

✓ The data will remain canceled as a precautionary measure pending a final decision from the AEPD.

✓ However, SD IBERIAN PORTFOLIOS, S.A. considers that the debt claimed from Mr. A.A.A. is valid, due, and enforceable, as no documentation was attached to prove that any payment had been made.

✓ Furthermore, it is worth mentioning that in the sales contract (intervened in a deed by the notary of Madrid, (...)) and signed between the Bank and SD IBERIAN PORTFOLIOS, S.A., the Bank has declared and guaranteed that all credits subject to assignment are legitimate, enforceable, existing, and overdue (attached notarial testimony as Doc. No. 6).”

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for understanding the claims of the claimant to be satisfied. Consequently, on February 5, 2024, for the purposes provided in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted SD IBERIAN PORTFOLIOS, S.A. a hearing procedure, so that within ten working days it could present the arguments it deemed appropriate, without submitting any arguments within the established period.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in its Article 57, among them, to enforce the Regulation and promote awareness among data controllers and processors regarding the

obligations that fall upon them, as well as addressing the claims submitted by an interested party and investigating, in a timely manner, the reason for the same.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of their functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission for processing of the claim regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to the present procedure, the claim was forwarded to the party being complained about for them to analyze it, respond to this Agency within a

month, and prove that they have provided the claimant with the appropriate response.

The result of this forwarding did not allow for the understanding that the claims of the complaining party were satisfied. Consequently, on February 5, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the claim submitted was admitted for processing. This admission for processing determines the opening of the present procedure for failure to respond to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the failure to respond to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the claimant was notified of the admission agreement. Once this period has elapsed, the interested party may consider their claim accepted."

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of rectifying any infringement of the GDPR, among which is included "ordering the controller or processor to address the requests for the exercise of the rights of the interested party under this Regulation."

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

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Additionally, consideration is given to the statements made in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must express its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication directed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the "data or processing activities to which the request refers." The right shall be deemed granted if the controller provides remote access to the data, considering the request fulfilled (although the data subject may request information regarding the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for doing so. Furthermore, the request will be

considered excessive when the affected party chooses a means other than that offered which incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if not obtained directly from the data subject), the existence of automated decisions,

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including the preparation of profiles, and information on transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data subject to processing shall not adversely affect the rights and freedoms of others.

V

Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or processed in another manner;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and this processing is not based on another legal ground;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the controller has made the personal data public and is obliged, under paragraph 1, to erase such data, the controller, taking into account available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to, or copies or replications of, those personal data.

3. Paragraphs 1 and 2 shall not apply to the extent that processing is necessary:

- a) for exercising the right to freedom of expression and information;
- b) for compliance with a legal obligation which requires processing by Union or Member State law to which the controller is subject, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes in accordance with Article 89(1), insofar as the right referred to in paragraph 1 is likely to render impossible or seriously impair the achievement of the objectives of that processing, or
- e) for the establishment, exercise or defense of legal claims."

VI

Conclusion

The rights procedure is initiated as a consequence of the lack of attention to any of the rights regulated in the data protection legislation. Therefore, in this case, only the facts related to the exercise of these rights will be analyzed and assessed, excluding the other issues raised by the parties.

In this case, and taking into account the provisions of the first paragraph of this Legal Basis, it has been established that the claimant requested from the respondent the documents that prove the existence, maturity, and enforceability of the debt, and in the event that they cannot provide those documents, the deletion of their data in the ASNEF-Equifax solvency file should proceed.

Servdebt España SLU responded that the claimed debt was monetary, certain, due, and enforceable, and remains unpaid. Furthermore, this debt does not exceed the age of 5 years, so it can continue to be claimed.

They also inform that (...) You can request a copy of all documentation related to this debt from the entity SANTANDER, S.A. where you contracted the services."

Article 28 GDPR, Processor, establishes that:

"3. The processing by the processor shall be governed by a contract or other legal act under Union or Member State law, which binds the processor to the controller and establishes the subject matter, duration, nature, and purpose of the processing, the type of personal data and categories of data subjects, and the obligations and rights of the controller. Such contract or legal act shall stipulate, in particular, that the processor:

a)

(..)

e) shall assist the controller, taking into account the nature of the processing, by means of appropriate technical and organizational measures, insofar as this is possible, to enable the controller to comply with its obligation to respond to requests for exercising the rights of data subjects as laid down in Chapter III;

(...)

h) shall make available to the controller all information necessary to demonstrate compliance with the obligations laid down in this article, as well as to allow and contribute to audits, including inspections, conducted by the controller or another auditor mandated by the controller. (...)"

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The Guidelines 07/2020 of the European Data Protection Committee on the concepts of "data controller" and "data processor" in the GDPR, adopted on July 7, 2021, state that

"12. The concepts of 'data controller' and 'data processor' are functional concepts: their purpose is to assign responsibilities based on the actual role of each party. This implies that the legal status of 'data controller' or 'data processor' of the participants must be established primarily based on their specific activities in a given situation and not based on the formal designation of a participant as 'data controller' or 'data processor' (e.g., in a contract). This implies that the assignment of the role of controller or processor should normally derive from an analysis of the facts or circumstances of the case and, consequently, is not negotiable.

(...)

SECTION II: CONSEQUENCES OF THE ASSIGNMENT OF DIFFERENT ROLES

1 RELATIONSHIP BETWEEN THE DATA CONTROLLER AND THE DATA PROCESSOR

93. A new characteristic feature of the GDPR is the provisions that impose obligations directly on data processors. For example, the data processor must ensure that persons authorized to process personal data have committed to respecting confidentiality (Article 28, paragraph 3), must maintain a record of all categories of processing activities (Article 30, paragraph 2), and must implement appropriate technical and organizational measures (Article 32). It must also appoint a data protection officer when certain conditions are met (Article 37) and has the duty to notify the data controller without undue delay of any personal data breaches of which it becomes aware (Article 33, paragraph 2). Furthermore, the

rules on transfers of data to third countries (Chapter V) apply not only to data controllers but also to processors. In this regard, the EDPB considers that Article 28, paragraph 3, of the GDPR, despite requiring the inclusion of specific content in the necessary contract between the controller and the processor, imposes direct obligations on processors, including the duty to assist the data controller in ensuring compliance with obligations.

(...)

1.3.5 The processor shall assist the controller in fulfilling its obligation to respond to requests concerning the exercise of the rights of data subjects [Article 28, paragraph 3, letter e), of the GDPR] 130. Although it is the responsibility of the controller to ensure that requests from data subjects are responded to, the contract must include the obligation of assistance from the processor "through appropriate technical and organizational measures, provided that

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"it may be possible." The type of assistance can vary greatly "considering the nature of the processing" and depending on the type of activity assigned to the processor. The details regarding the assistance to be provided by the processor must be included in the contract or in an annex to it.

131. Although the assistance may consist simply of promptly communicating any request received or allowing the controller to extract and manage the relevant personal data directly, in certain circumstances, more specific and technical duties will be assigned to the processor, especially when it is in a position to extract and manage the personal data.

132. It is essential to keep in mind that, although the practical management of individual requests may be subcontracted to the processor, the controller remains responsible for addressing such requests. Therefore, it is up to the controller to assess whether the requests from data subjects are admissible and whether the requirements established in the GDPR are met, either on a case-by-case basis or through clear instructions given to the processor in the contract before the processing begins. Furthermore, the controller cannot extend the deadlines established in Chapter III by claiming that the processor must provide the necessary information.

(...)

138. The duty of assistance does not imply a transfer of responsibilities, as these obligations are imposed on the controller. For example, although a processor may practically carry out the data protection impact assessment, the controller will still be responsible for the duty to carry it out, and the processor should only assist the controller "when necessary and at their request." Consequently, it is the responsibility of the controller, and not the processor, to take the initiative to carry out the data protection impact assessment.

Regarding the requested right of access, the obligation to provide a copy contained in Article 15.3 of the GDPR refers only to a copy of the personal data subject to processing, but not necessarily to a reproduction of the original documents containing that personal data.

Thus, the European Data Protection Board clarified the content of the right of access recognized in Article 15 of the GDPR in paragraph 23 of Guidelines 01/2022, dated March 28, 2023, on the rights of data subjects - Right of access, stating the following: "The obligation to provide a copy should not be understood as an additional right of the data subject, but as a modality of access to the data. It reinforces the right of access to the data and helps to interpret this right because it makes it clear that access to the data under Article 15, paragraph 1, includes complete information about all the data and cannot be understood as granting only a summary of the data. At the same time, the obligation to provide a copy does not aim to extend the scope of the right of access: it refers (only) to a copy of the personal data subject to processing, not..."

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necessarily to a reproduction of the original documents. More generally, there is no additional information provided to the data subject when a copy is supplied: the scope of the information that must appear in the copy is the scope of access to the data under Article 15, paragraph 1, which includes all the information necessary for the data subject to understand and verify the legality of the processing.”

For its part, the judgment of the Court of Justice of the European Union of May 4, 2023 (case C-487/21) concludes that Article 15, paragraph 3, first sentence, of the GDPR must be interpreted to mean that “the right to obtain from the data controller a copy of the personal data being processed implies that an authentic and intelligible reproduction of all such data is provided to the data subject. This right includes the right to obtain copies of extracts from documents, or even entire documents, or extracts from databases, which contain, among others, such data, if the provision of such a copy is essential to enable the data subject to effectively exercise the rights conferred on them by that Regulation. It should also be emphasized the necessity of taking into account, in this respect, the rights and freedoms of third parties.”

The aforementioned Guidelines 01/2022 indicate:

“16.1.1.

Definition of the content of the right of access

17. Article 15, paragraphs 1 and 2, contains the following three aspects: first, the confirmation of whether the personal data of the applicant is being processed; if so, second, access to that data; and third, information about the processing. These can be considered as three different components that together constitute the right of access.

17.1.1.1. Confirmation of whether personal data is being processed or not

18. When making a request for access to personal data, the first thing that data subjects must know is whether the data controller is processing the data concerning them. Consequently, this information constitutes the first component of the right of access under Article 15, paragraph 1. When the data controller does not process personal data related to the data subject requesting access, the information provided will be limited to confirming that no personal data related to the data subject is being processed. When the data controller processes data related to the applicant, the data controller must confirm this fact to that person. This confirmation may be communicated separately or may be included as part of the information about the personal data being processed (see below).

2.2.1.2 Access to the personal data being processed

19. Access to personal data is the second component of the right of access under Article 15, paragraph 1, and constitutes the core of this

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law. It refers to the notion of personal data as defined in Article 4, paragraph 1, of the GDPR. Apart from basic personal data, such as name and address, an unlimited variety of data may be included in this definition, as long as it falls within the material scope of the GDPR, especially concerning the manner in which it is processed (Article 2 of the GDPR). Access to personal data means access to the actual personal data, not just a general overview of the data or a mere reference to the categories of personal data processed by the data controller. If no limits or restrictions are applied, data subjects have the right to access all data processed concerning them, or parts of the data, depending on the scope of the request (see sec. 2.3.1). The obligation to provide access to the data does not depend on the type or source of such data. It applies in full even in cases where the requesting person initially provided the data to the data controller, as its purpose is to inform the data subject about the actual processing of such data by the data controller. The scope of personal data under Article 15 is explained in detail in secs. 4.1 and 4.2.

(...)

2.3 General principles of the right of access

34. When data subjects submit a request for access to their data, in principle, the information referred to in Article 15 of the GDPR must always be provided in full. Consequently, when the data controller processes data relating to the data subject, the data controller shall provide all the information referred to in Article 15, paragraph 1, and, where applicable, the information referred to in Article 15, paragraph 2. The data controller must take appropriate measures to ensure that the information is complete, accurate, and up to date, as close as possible to the state of data processing at the time of receiving the request. When two or more data controllers process data jointly, the arrangement of the joint controllers regarding their respective responsibilities in relation to the exercise of the rights of the data subject, especially concerning the response to access requests, does not affect the rights of the data subjects against the data controller to whom they direct their request.

(...)

42.1.1.

Analysis of the content of the request

43. This issue can be evaluated more specifically by asking the following questions.

a)

Does the request relate to personal data?

44. Under the GDPR, the scope of the request will only cover the data

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personal data. Therefore, any request for information regarding other issues, including general information about the data controller, its business models, or its processing activities unrelated to personal data, will not be considered a request made in accordance with Article 15 of the GDPR. Furthermore, a request for information about anonymous data or data that does not concern the requester or the person on whose behalf the authorized person made the request will not fall within the scope of the right of access. This question will be analyzed in more detail in Section 4.

45. Unlike anonymous data (which is not personal data), pseudonymous data, which could be attributed to an individual through the use of additional information, is personal data. Therefore, pseudonymous data that can be linked to a data subject, for example, when the data subject provides the respective identifier that allows for their identification, or when the data controller can connect the data to the requester by their own means, must be considered within the scope of the request.

(...)

e) Do the data subjects wish to access all or part of the information processed about them?

51. Additionally, the data controller must assess whether the requests made by the requesters refer to all or part of the information processed about them. Any limitation of the scope of a request to a specific provision of Article 15 of the GDPR, made by the data subjects, must be clear and unequivocal. For example, if the data subjects literally request "information about the data processed in relation to them," the data controller must assume that the data subjects intend to fully exercise their right under Article 15, paragraphs 1 to 2, of the GDPR. Such a request should not be interpreted as meaning that the data subjects wish to receive only the categories of personal data being processed and waive their right to receive the information listed in Article 15, paragraph 1, letters a) to h). This would be different, for example, when the data subjects wish, regarding the specified data, to have access to the source or origin of the personal data or the specified retention period. In such a case, the data controller may limit its response to the specific information requested.

The right of access in its copy modality implies "...that an authentic and intelligible reproduction of all such data is provided to the data subject," and also "This right includes obtaining a copy of extracts from documents, or even entire documents, or extracts from databases, which contain, among others, such data, if the provision of such a copy is essential to allow the data subject to effectively exercise the rights conferred on them by that Regulation. It should also be emphasized that the rights and...

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"third-party rights," which implies that each specific case must be examined.

As can be inferred from the complaint and the statements made by the data processor SERVDEBT, who is considered the data controller of the personal data of the complainant, the party responsible for processing is the defendant IBERIAN PORTFOLIOS, S.A. Therefore, it is this entity that must facilitate the exercise of the right of access provided for in Article 15 of the GDPR under the terms indicated in that article.

As evidenced by the documents in this procedure, the defendant has not facilitated the complainant's right of access despite it being expressly requested in the burofax sent to them. Similarly, the response provided by the data processor Servdebt did not facilitate this exercise, merely stating that Banco Santander S.A. has transmitted to the Assignee those personal data related to the Credit that were provided by the complainant and that are necessary for its management and enforceability.

The defendant, for its part, has also not addressed this issue, despite having been notified of the agreement by which the complaint was accepted, granting them a hearing period to indicate and provide what they deemed appropriate.

Consequently, it has been established that the complainant has exercised the right of access to their personal data before the defendant without it being duly attended to, and therefore, the complaint presented must be upheld.

In view of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by Mr. A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge SD IBERIAN PORTFOLIOS, S.A. with NIF B.B.B., to send to the complainant, within ten working days following the notification of this resolution, a certification addressing the requested right or a reasoned denial indicating the reasons why the request cannot be attended to, in accordance with the provisions set forth in this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same timeframe. Non-compliance with this resolution could constitute an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Mr. A.A.A. and to SD IBERIAN PORTFOLIOS, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1381-090823

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